

as they did before the enactment of the FSIA. *See Samantar*, 560 U.S. at 321–25. Both before and after that decision, the United States has suggested immunity for former foreign officials who were alleged to have committed *jus cogens* violations. *See* U.S. Amicus Br. at 19–25, *Matar v. Dichter*, No. 07-2579-cv (2d Cir. Dec. 19, 2007); U.S. Amicus Br. at 23–34, *Ye v. Zemin*, No. 03-3989 (7th Cir. Mar. 5, 2004); *see also* Statement of Interest & Suggestion of Immunity at 7–11, *Rosenberg v. Lashkar-e-Taiba*, No. 1:10-cv-5381-DLI-CLP (E.D.N.Y. Dec. 17, 2012); Suggestion of Immunity at 6, *Doe v. De Leon*, No. 3:11-cv-01433-AWT (D. Conn. Sept. 7, 2012); Statement of Interest & Suggestion of Immunity at 5–8, *Giraldo v. Drummond Co.*, No. 1:10-mc-00764-JDB (D.D.C. Mar. 31, 2011). The courts deferred to the United States’ Suggestions of Immunity in those cases. *See Matar*, 563 F.3d at 14-15; *Ye*, 383 F.3d at 626–27; *Rosenberg v. Pasha*, 577 F. App’x 22, 23–24 (2d Cir. 2014); *Doe v. De Leon*, 555 F. App’x 84, 85 (2d Cir. 2014); *Giraldo v. Drummond Co.*, 493 F. App’x 106 (D.C. Cir. 2012) (per curiam). The Department of State has determined that Barak is immune from suit. The Court must defer to that determination, notwithstanding Plaintiffs’ allegations of *jus cogens* violations.

### C. The TVPA Does Not Override the Immunity of Foreign Officials

Plaintiffs also err in suggesting that Congress abrogated immunity under the common law for foreign officials accused of torture or extrajudicial killing. Opp’n at 9. Indeed, they argue that the TVPA does so “unambiguous[ly].” Opp’n at 10. This is plainly incorrect, as the TVPA is entirely silent as to whether it limits the immunities of foreign officials. Indeed, Plaintiffs can cite no portion of the TVPA that references or mentions common law immunity. As the Supreme Court has noted, “[i]n order to abrogate a common-law principle, the statute must ‘speak directly’ to the question addressed by the common law.” *United States v. Texas*, 507 U.S. 529, 534 (1993) (quoting *Mobil Oil Corp. v. Higginbotham*, 436 U.S. 618, 625 (1978)); *see also The Schooner Exch. v. McFaddon*, 11 U.S. 116, 146 (1812) (noting that courts may not infer a